Fort Bend County District Court

Cause No. 2024-CV-0034

Nicole Gonzales, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-28-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations by a preponderance of the evidence.

Subject to and without waiving the foregoing denial, Defendant asserts the following affirmative defenses. First, Plaintiff's own negligecne proximately caused or contributed to the occurrence, and under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced in proportion to Plaintiff's percentage of responsibility, and barred if that percentage exceeds fitfy percent. Second, the damages claimed were caused, in whole or in part, by a preexisting or subsequent condition unrelated to the occurrence, and Defendant is not liable for such damages. Third, Plaintiff faield to mitigate damages by failing to exercise reasonable care to seek and follow appropriate medical treatment, and any recovery must be reduced accordingly.